



LAWS OF MALAYSIA

ONLINE VERSION OF UPDATED
TEXT OF REPRINT

Act 236

TREASURY DEPOSIT RECEIPTS ACT 1952

As at 1 January 2013

TREASURY DEPOSIT RECEIPTS ACT 1952

First enacted	...	...	...	...	...	1952 (Ordinance No. 66 of 1952)
Revised	...	...	...	...	...	1980 (Act 236 w.e.f. 17 July 1980)

PREVIOUS REPRINTS

<i>First Reprint</i>	...	...	...	...	2001
<i>Second Reprint</i>	...	...	...	...	2006

LAWS OF MALAYSIA**Act 236****TREASURY DEPOSIT RECEIPTS ACT 1952**

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LAWS OF MALAYSIA**Act 236****TREASURY DEPOSIT RECEIPTS ACT 1952**

An Act to confer on the Minister of Finance power to receive money on deposit for fixed periods and to pay interest thereon and for purposes connected therewith.

[24 November 1952]

Short title

1. This Act may be cited as the Treasury Deposit Receipts Act 1952.

Interpretation

2. In this Act, unless the context otherwise requires —

“treasury deposit” means any money deposited in accordance with section 3;

“treasury deposit receipt” means a receipt given in accordance with section 5.

Treasury deposits

3. (1) The Minister of Finance is hereby authorized to accept on behalf of the Federal Treasury at such times and up to such maximum amounts as he may from time to time specify deposits by any person of any sum of fifty thousand ringgit or a multiple of fifty thousand ringgit:

Provided that the total amount of money so accepted and not repaid on deposit at any one time shall not exceed* two hundred million ringgit, or such further sum as may be authorized by resolution of the Dewan Rakyat.

*NOTE—As authorized by the Legislative Council by resolution on 12 September 1956—see 1956 Hansard page 1529.

(2) The sums received under this section shall be applied, and are hereby appropriated, to the following purposes:

- (a) repayment of the moneys received under this Act, to such extent as the Minister of Finance may determine;
- (b) payment, with the prior approval of the Dewan Rakyat signified by resolution, into the Development Fund specified in the Second Schedule to the Financial Procedure Act 1957 [Act 61], for the purposes of such Fund.

Term of treasury deposits

4. Any person making a deposit under section 3 shall thereupon declare the period in respect of which such deposit is made, and the period shall be either two, three, four or five years from the date of making such deposit; and at the end of that period the money so deposited shall be repaid in the manner hereinafter provided.

Treasury deposit receipts

5. The Minister of Finance shall give a receipt in the form in the Schedule for every treasury deposit.

Transfer of treasury deposit receipts

6. Treasury deposit receipts shall be transferable by endorsement and delivery.

Interest

7. (1) Interest shall be paid on all treasury deposits in accordance with this section.

(2) The Minister of Finance shall from time to time by order notified in the *Gazette* prescribe the rates of interest to be paid per annum on treasury deposits of different durations.

(3) The rate of interest to be paid on any treasury deposit shall be that in force at the date of making the deposit.

(4) Interest on all treasury deposits shall become due annually on the anniversary of the date of making the same and shall be paid at the Federal Treasury to the holder of the treasury deposit receipt relating to such deposit on presentation of the said treasury deposit receipt to the Minister of Finance, who shall endorse the particulars of the date and of the amount of interest so paid on the back of the said treasury deposit receipt; and such endorsement shall be conclusive evidence that the interest specified in the endorsement has been paid.

(5) No interest shall be due or payable on any treasury deposit after the expiration of the period for which the deposit was made.

Repayment of treasury deposits

8. (1) A treasury deposit shall be repaid on maturity to the holder of the treasury deposit receipt relating to such deposit on his tendering to the Minister of Finance the said treasury deposit receipt.

(2) No treasury deposit shall be repaid except upon the surrender of the treasury deposit receipt in respect thereof to the Minister of Finance for cancellation by him.

Treasury deposits and interest to be a charge on Consolidated Fund

9. The moneys represented by treasury deposit receipts and interest thereon are hereby charged upon and shall be payable out of the Consolidated Fund.

Treasury deposit receipts to be free of stamp duty

10. No stamp duty shall be leviable or payable on any treasury deposit receipt or on the transfer thereof.

Delegation by Minister of Finance of his powers and duties

11. The Minister of Finance may delegate to the Accountant General by notification in the *Gazette* any or all of the powers or duties conferred upon him by this Act.

Offences

12. Any person who forges or alters any treasury deposit receipt or any word, figure or mark, sign, signature or facsimile upon or attached to any treasury deposit receipt, or who offers or utters or disposes of any treasury deposit receipt knowing the same to be forged or altered shall, on conviction, be liable to imprisonment for a term not exceeding fifteen years.

SCHEDULE

[Section 5]

TREASURY DEPOSIT RECEIPTS ACT 1952

TREASURY DEPOSIT RECEIPT

The Minister of Finance hereby acknowledges the deposit in the Federal Treasury of the sum of RM (say)
by of for a term of
..... years at per cent interest per annum.

Dated this day of20

.....
(Signature)
Minister of Finance

LAWS OF MALAYSIA**Act 236****TREASURY DEPOSIT RECEIPTS ACT 1952****LIST OF AMENDMENTS**

Amending law	Short Title	In force from
L.N. 46/1955	Treasury Deposit Receipts Ordinance 1952	15-01-1955
L.N. 113/1956	Minister of Finance Order 1956	02-04-1956
Ord. 66/1957	Treasury Deposit Receipts (Amendment) Ordinance 1957	19-12-1957
L.N. 332/1958	Federal Constitution (Modification of Laws) (Ordinances and Proclamations) Ordinance 1958	13-11-1958
Act 3/1959	Treasury Deposit Receipts (Amendment) Act 1959	31-12-1959
Act 23/1961	Treasury Bills and Deposit Receipts (Amendment) Act 1961	01-01-1958
Act 160	Malaysian Currency (Ringgit) Act 1975	29-08-1975

LAWS OF MALAYSIA**Act 236****TREASURY DEPOSIT RECEIPTS ACT 1952****LIST OF SECTIONS AMENDED**

Section	Amending authority	In force from
3	L.N. 46/1955	15-01-1955
	L.N. 113/1956	02-04-1956
	Ord. 66/1957	19-12-1957
	Act 23/1961	01-01-1958
	L.N. 332/1958	13-11-1958
	Act 3/1959	31-12-1959
	Act 160	29-08-1975
4	Act 3/1959	31-12-1959
	L.N. 113/1956	02-04-1956
7	L.N. 332/1958	13-11-1958
	L.N. 113/1956	02-04-1956
8	L.N. 113/1956	02-04-1956
11	L.N. 113/1956	02-04-1956
